

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #07	CCRB Case #: 201802914	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/03/2018 4:24 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 9/3/2019	Precinct: 120		
Date/Time CV Reported Fri, 04/06/2018 12:34 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 04/06/2018 12:34 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Dominicci	06048	955888	120 PCT
2. POM Robert Martino	05441	958720	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vincent Giuliano	19020	958637	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Dominicci	Abuse: Police Officer Robert Dominicci stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Robert Dominicci	Abuse: Police Officer Robert Dominicci searched § 87(2)(b)	B . Exonerated
C . POM Robert Dominicci	Abuse: Police Officer Robert Dominicci searched the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Robert Martino	Abuse: Police Officer Robert Martino searched the vehicle in which § 87(2)(b) was an occupant.	D . Exonerated

Case Summary

On April 6, 2018, § 87(2)(b) filed this complaint with the CCRB. On March 3, 2018, at approximately 4:24 p.m., § 87(2)(b) was pulled over in front of § 87(2)(b) in Staten Island by PO Robert Dominicci, PO Vincent Giuliano and PO Robert Martino of the 120th Precinct (**Allegation A – Abuse of Authority:** § 87(2)(g) § 87(2)(b) was asked to exit the vehicle and was searched by PO Dominicci (**Allegation B – Abuse of Authority:** § 87(2)(g) PO Dominicci and PO Martino searched § 87(2)(b)'s vehicle (**Allegations C and D – Abuse of Authority:** § 87(2)(g) § 87(2)(b) was released without being arrested or summonsed.

The investigation obtained a cell phone video recorded by § 87(2)(b) as well as three body worn camera videos recorded by the police officers.

§ 87(2)(g)

Findings and Recommendations

Subject Officer Identification

§ 87(2)(b) stated that PO Dominicci spoke to him primarily and accused him of not wearing his seatbelt properly. All three officers stated that PO Dominicci was the only officer who observed § 87(2)(b) driving and decided to pull § 87(2)(b) over. § 87(2)(g)

All of the videos showed that PO Dominicci searched § 87(2)(b) and that PO Dominicci and PO Martino both searched § 87(2)(b)'s vehicle. § 87(2)(g)

Allegation (A) Abuse of Authority: Police Officer Robert Dominicci stopped the vehicle in which § 87(2)(b) was an occupant.

It was undisputed that PO Dominicci told § 87(2)(b) that he was pulled over for not wearing his seatbelt correctly. § 87(2)(g)

§ 87(2)(b) stated (**Board Review 1**) that he had just driven out of the parking lot near his home when he saw a police vehicle at the intersection § 87(2)(b) § 87(2)(b) denied that he was wearing his seatbelt incorrectly. § 87(2)(b) was pulled over in front of § 87(2)(b). After searching § 87(2)(b)'s vehicle PO Dominicci did not issue § 87(2)(b) any summonses. § 87(2)(b) alleged that he has been repeatedly harassed by different officers of the 120th Precinct. § 87(2)(b) did not claim to have interacted with PO Dominicci, PO Martino or PO Giuliano before.

PO Martino was the driver of the patrol car. PO Dominicci sat in the front passenger seat and PO Giuliano sat in the back seat. PO Dominicci stated (**Board Review 2**) that he saw § 87(2)(b) driving towards them wearing his seatbelt under his arm rather than over his shoulder. PO

Dominicci has had previous interactions with § 87(2)(b) and claimed that § 87(2)(b) was a gang member. However, PO Dominicci stated that he only recognized § 87(2)(b) after pulling him over and did not initially recognize him because of a change in his hairstyle. PO Dominicci stated that he used his discretion and released § 87(2)(b) with only a warning. PO Giuliano (**Board Review 3**) and PO Martino (**Board Review 4**) stated that PO Dominicci stated he observed a traffic infraction and told the other officers to pull over § 87(2)(b). PO Giuliano and PO Martino did not observe § 87(2)(b) driving. PO Giuliano and PO Martino did not hear PO Dominicci say anything about recognizing § 87(2)(b) until after the car stop. Neither PO Giuliano nor PO Martino had any previous interactions with § 87(2)(b).

§ 87(2)(g). The body worn camera videos did not show § 87(2)(b)'s vehicle while in motion. § 87(2)(b)'s cell phone video was not recording until after he was pulled over. PO Dominicci informed § 87(2)(b) that he pulled him over for not wearing his seatbelt properly. § 87(2)(b) and PO Dominicci argued back and forth with § 87(2)(b) claiming that he was wearing a seatbelt and PO Dominicci stating that he was not wearing the seatbelt properly.

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Robert Dominicci searched § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Robert Dominicci searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (D) Abuse of Authority: Police Officer Robert Martino searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)

It is undisputed that PO Dominicci searched § 87(2)(b) and that PO Dominicci and PO Martino searched § 87(2)(b)'s vehicle. There is no significant discrepancy between § 87(2)(b) and the officers' accounts of these events.

PO Dominicci, PO Giuliano and PO Martino (**Board Review 2, 3 and 4**) all stated they smelled the odor of marijuana when they walked up to § 87(2)(b)'s vehicle. During his CCRB interview, § 87(2)(b) had a strong lingering odor of marijuana smoke upon his person and when asked, confirmed that the smell was from smoking marijuana. § 87(2)(b) stated that he does smoke marijuana, but denied that he was smoking marijuana when he was pulled over. PO Dominicci instructed § 87(2)(b) to exit the vehicle and escorted him to the hood of the patrol car. § 87(2)(b) was made to lean against the hood of the patrol car with his palms on the hood. PO Dominicci frisked along his legs and torso. § 87(2)(b) had a screwdriver in his left front pants pocket. PO Dominicci entered the pocket and removed the screwdriver.

PO Dominicci told § 87(2)(b) that according to the court ruling in “People v. Chestnut” the odor of marijuana gave him the probable cause to search the vehicle for marijuana. PO Dominicci searched the front passenger compartment of § 87(2)(b)’s vehicle including the front seats and the center console, PO Martino searched the front driver’s seat and the rear seats. PO Dominicci and PO Martino both searched the trunk where § 87(2)(b) had a shoebox. The officers searched inside the box. PO Dominicci opened the hood of § 87(2)(b)’s vehicle. PO Dominicci and PO Martino stated there were bare stems of marijuana plant scattered on the floor of the rear passenger compartment, but that they could not issue a summons or arrest § 87(2)(b) for the stems. PO Dominicci instructed § 87(2)(b) to return to his vehicle. The officers then returned to their vehicle. PO Dominicci returned to § 87(2)(b)’s vehicle and informed him he was free to leave with a warning for not wearing his seatbelt properly.



PO Dominicci's BWC.mp4



PO Martino's BWC.mp4

The videos of the incident show that the events unfolded in a manner largely consistent with § 87(2)(b) and the police officers’ statements. The videos showed that all four car windows on § 87(2)(b)’s vehicle were already lowered as the police officers approached the vehicle. The videos confirm that PO Dominicci informed § 87(2)(b) that he smelled the odor of marijuana emanating from his car (PO Dominicci’s BWC; 0:05). The subsequent search of § 87(2)(b) and the search of his vehicle were recorded on the body worn cameras as well as on § 87(2)(b)’s cell phone and unfolded in a manner consistent with the officers’ descriptions. PO Martino picked up a small object from the floor of the rear passenger compartment, referred to it as “stems” and told § 87(2)(b) he should vacuum it (PO Martino’s BWC; 5:02). § 87(2)(b) responded, “I know” and stated that he had intended to do so before he was stopped. The object is not clearly visible in any of the video due to its small size. Upon returning to their patrol car, one of the officers remarked aloud that there were “stems” in § 87(2)(b)’s car (PO Martino’s BWC; 5:20).

The smell of marijuana smoke, with nothing more, can be sufficient to provide police officers with probable cause to search an automobile and its occupants. People v. Chestnut 43 A.D. 2d 260 (1974). **(Board Review 5)**

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to six other CCRB complaints and has been named as a victim in 30 allegations (**Board Review 6**).
 - § 87(2)(b)
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- PO Robert Dominicci has been a member of service for four years and has been a subject in three CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Robert Martino has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of July 3, 2018, the Office of the New York City Comptroller has no record of a Notice of Claim being filed regarding this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 7

Investigator: _____ Inv. Simon Wang _____
Signature Print Title & Name Date

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature _____ Print Title & Name _____ Date _____

